

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-017 Amendments to Title 8 and Title 2, Chapter 10, Article D of the Chickasaw Nation Code (Elections and Campaigns & Chickasaw Election Commission)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, upon consulting with the Chickasaw Election Commission, the Tribal Legislature hereby proposes numerous amendments to Title 8 and Title 2 of the Chickasaw Nation Code, and

WHEREAS, amendments to Title 8 are needed to help promote clarity in the Chickasaw Nation's election laws and procedures and will establish a more uniform system of conducting elections, both primary and runoff, including recounts, and

WHEREAS, amendments to Title 2, Chapter 10, Article D, are needed to clarify the duties and responsibilities of the Chickasaw Nation Election Commission and Election Secretary/Tribal Registrar.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves of the following amendments to Title 8 and Title 2, Chapter 10, Article D of the Chickasaw Nation Code. Additions will be shown in red and deletions will be shown as stricken. All other Sections and Subsections of Title 8 and Title 2 will remain the same and are not affected by this resolution.

SECTION 8-102 DEFINITIONS.

For the purpose of this title, the following words shall have the meanings respectively ascribed to them in this section unless the context clearly requires otherwise:

1. "Activity Report" means the daily report of returned election ballots. These include accepted (valid) ballots, undeliverable ballots (no current address), unsigned returned envelopes, ballots returned because voter is deceased, and rejected ballots.

2. "Candidate" means a registered voter of Chickasaw descent who meets the qualifications necessary to have his name appear on the ballot for consideration by the voters in the election of tribal officials;

3. "Commission" means the Election Commission created to conduct all aspects of Chickasaw tribal elections as established in Title 2 of this code;

4. "Constitutional amendment election" is the method by which the Constitution is modified, certain parts deleted or additions made, in an election in accordance with the provisions of Article XVIII of the Constitution;

5. "Current" means most recent; up-to-date;

6. "In Kind" means any service or thing which has a monetary value but is given to or performed for or on behalf of a candidate at no cost to the candidate;

67. "Initiative petition" means a petition filed by a single citizen or by any number of citizens which meets the criteria contained in Article XIV of the Constitution and which seeks legislative changes through the filing of formal petitions to be acted on by the Legislature and by the electorate of the Nation;

58. "Mail out date" is the date that ballots shall be mailed to the voters. It shall be the first Monday of August of each year;

79. "Nonresident voter" means a registered voter who does not reside within the boundaries of the Chickasaw Nation;

810. "Recall petition" means a method of removal of an elected official in which the power of removal is granted by Article XVI, Section 2, of the Constitution and reserved by the same to the people. It is the right or procedure by which a public official may be removed from office before the end of his term of office by a vote of the people to be taken on the filing of a petition signed by not less than twenty-five percent (25%) of the registered voters residing within the district or area from which the official was elected;

11. "Residency/Resident" means the act of residing or one who resides within the territorial jurisdiction of the Chickasaw Nation as the primary place of domicile;

12. "Tribal Assets" means property of all kinds including real, personal and intellectual property such as the use of the Great Seal of the Chickasaw Nation;

913 "Election Secretary/Tribal Registrar" means the person charged with the operational responsibilities of the Election Commission including, but not limited to, responsibility for the day-to-day procedures of tribal elections; defining job descriptions, duties and responsibilities of subordinate staff; preparation of the annual budget; preparation and filing of all reports including minutes of each Election Commission meeting; and the implementation of law, policy, findings and actions lawfully prescribed by the Legislature through the Chickasaw Nation Code. Day-to-day procedures shall include staffing a tribal registration office forty (40) hours per week, fifty-two weeks a year, subject to approved

leave; providing information to candidates, potential candidates and the general public; and, from October 1 to April 1 of each fiscal year, consult with the Legislature regarding needed additions or changes to the election rules and procedures

14. "Voter" means a Chickasaw citizen who has registered to vote in accordance with this title; and

15. "Voters List" means a list of Chickasaw citizens who have registered as Voters with the Election Secretary/Tribal Registrar in accordance with this Title.

SECTION 8-103 CEREMONY.

Installation of elected officials shall take place on October 1 or on the first normal, non-holiday weekday of October of the year of the election, beginning on or about ~~9:00~~ 10:00 a.m. The swearing in ceremony shall be conducted by one of the standing judges, ~~selected by the Commission.~~ Should circumstances beyond the control of the official being sworn in preclude him from being sworn in at that time, the swearing in shall be accomplished at the earliest possible time convenient and practicable. The location of the ceremony shall be in a place determined annually by the Chickasaw Election Commission.

SECTION 8-201 ELIGIBILITY REQUIREMENTS OF OFFICE.

Candidates for tribal office must meet the requirements set forth in the Constitution. Such requirements relate to citizenship, Residency for prescribed periods of time, voter registration, criminal histories, age, and for certain offices, a blood quantum requirement. The Election Commission may request proof that candidates meet all such requirements. For example, ~~c~~Criteria to be considered in determining the Residency of a candidate shall include, but is not limited to, the address used for payment of utilities, telephone billing address, and post office address. The Commission shall determine if each candidate is ~~eligible~~ qualified to run for office.

SECTION 8-202 EMPLOYEES OF THE NATION.

Employees of the Nation and its entities, including the Housing Authority and anyone who serves as a contract employee or consultant, may seek elective office. However, once such a person has filed as a candidate, the employee must resign his position on the day he files, and may not be re-employed by the Nation during the tenure of the office. Documentation of resignation must be provided to the Election Commission. For this purpose, no elected officials are considered employees of the Nation.

SECTION 8-203 FILING PERIOD.

The filing period for tribal elections shall begin the first Monday in June and shall last until the Friday of that same week, unless otherwise provided by law for purposes of special elections. Hours of filing on each day shall be between 8:00 a.m. and 4:30 p.m. The ~~D~~Declaration of

Candidacy shall be filed no later than 4:30 p.m. on the Friday of the week of filing in the office of the Election Secretary/Tribal Registrar ~~maintained the Chickasaw Nation~~.

1. The Declaration of Candidacy form requires an oath wherein the candidate swears or affirms that he is qualified under the Constitution to become a candidate for the office he is seeking and that, if elected, he will be qualified to hold the office. The candidate's signature must be notarized by the Election Secretary/Tribal Registrar. Falsification of information contained in the Declaration of Candidacy shall mean that the candidate is not qualified to run for office and may subject the affiant to criminal prosecution under any applicable federal or tribal law.

2. The Declaration of Candidacy form must be complete and presented to the Chickasaw Nation Election Secretary/Tribal Registrar whereupon it may then be signed and notarized. When the candidate files the form ~~in person~~, he may be asked to initial any changes on the form to comply with the law. No filing by proxy will be allowed.

SECTION 8-204 FILING FEE; VOTER LISTS.

B. The Election Secretary/Tribal Registrar shall have each candidate who files for office sign a statement that there shall be no return of their filing fee once the candidate is deemed ~~eligible~~ qualified. If a candidate is found to have provided inaccurate information on the Declaration of Candidacy and is later deemed ~~ineligible~~ unqualified, the filing fees will not be returned. Such fees are used to help defray the expenses that are incurred in conducting the elections. A report detailing fees and costs will be given to the Executive and Legislative Departments within thirty (30) days of the conclusion of the election process.

C. ~~Payment of the filing fee shall entitle the candidate for office to a computer printout of the voters list and one set of adhesive labels for the district or districts in which they are a candidate under the provisions of this Title. This will also entitle the candidate to one free set of labels for any runoff election.~~ Upon filing a Declaration of Candidacy and payment of fees, a candidate shall receive a packet including disclosure statements, a candidate information sheet, a biography form, a copy of current election rules and regulations and a copy of the Constitution.

D. Qualified candidates shall receive a computer printout, diskette and adhesive labels of the voters list for the district or districts for which they are a candidate. Such list shall contain, only, each voter's name, address and zip code, in zip code order, and shall be available on the Wednesday following the date that the filing period for candidates officially closes. At that time, candidates may compare their lists to the master list of their voters for accuracy. All qualified candidates receiving such list shall, on the fifth (5th) day after voter registration closes, receive a list of the qualified voters who were added up to the time registration closed. There shall be no additional charge for the updated list. All such diskettes shall be formatted for operation in IBM compatible computers and software using Windows 3.1 or Windows 95 or current.

E. Eligible candidates shall receive another set of updated adhesive labels of the voters

list for the district or districts for which they are a candidate for any runoff election.

F. The Election Secretary/Tribal Registrar shall personally review all voters lists, computer diskettes and adhesive labels to insure that all candidates are treated fairly and equitably with regard to voter lists and voter information. Each voters list distributed within a particular district shall be identical to others distributed within that district in the interest of fairness to a candidate.

SECTION ~~8-209~~ 8-205 ADDITIONAL MAILING LABEL FEES.

Qualified candidates for elective office of the Chickasaw Nation shall be entitled to purchase additional self-adhesive mailing labels of the registered voters for each district in which they are a candidate at a cost of \$50.00 per district. Additional is to be defined in this circumstance as those copies beyond the first free set of labels for each regular or runoff election. Only qualified candidates for elective office in the Chickasaw Nation may have access to the mailing labels.

SECTION ~~8-210~~ 8-206 ACTIVITIES REPORT (~~VOTERS IN PREVIOUS ELECTION~~).

All candidates and elected officials ~~may, upon written request, receive this~~ shall receive by mail an activities report for their respective district(s) for their primary and/or runoff election from the Election Secretary/Tribal Registrar.

SECTION ~~8-211~~ 8-207 USE OF VOTER LISTS.

Voter lists and activities reports may not be used for commercial purposes. A statement to this effect must be signed prior to issuance of a voter's list or activities reports. These lists are for the exclusive use of candidate and elected officials.

SECTION ~~8-208~~ INSPECTION OF VOTERS LISTS.

~~A. Qualified candidates shall receive a computer printout of the voters list for the district or districts for which they are a candidate. Such list shall contain, only, each voter's name, address and zip code, in zip code order, and shall be available on the Wednesday following the date that the filing period for candidates officially closes. At that time, the candidates may compare their lists to the master list of their voters for accuracy. All qualified candidates receiving such list shall, on the 5th day after voter registration closes, receive a list of all the qualified voters who were added up to the time registration closed. There shall be no additional charge for the updated list. In lieu of the printout voters list, at the option of the candidate, he may select the option of having the list(s) of registered voters provided in a computer diskette format. In such instances where that option is selected by a candidate, the same provisions shall apply for an updated diskette being provided once voter registration has closed. Should this option be selected by a candidate, that selection must be indicated in a formal written request provided to the Election Secretary/Tribal Registrar during the time frame allowed for filing of the Declaration of Candidacy form. All such diskettes shall be~~

formatted for operation in IBM compatible computers and software using Windows 3.1 or Windows 95 or current software.

~~B. All steps will be taken to insure that all candidates are treated fairly and equitably with regard to voter lists and voter information. Each voters list distributed within a particular district will be identical to others distributed within that district in the interest of fairness to a candidate.~~

SECTION 8-212 8-208 ELECTIVE OFFICE VACANCIES.

When the Election Commission has declared an elective office to be vacant due to a resignation or death, the Governor shall call and set the date for an election, without regard to the effective date of the resignation, if the elective office being vacated would not, ordinarily, be open for the regularly scheduled election. Then the Election Commission may either open the filing for such office to be voted upon at the upcoming regularly scheduled election, or, if necessary, provide for a special filing period and special election. The Governor shall call for the election by the most expedient method to fill the vacated elective office.

SECTION 8-205 8-209 CHALLENGE TO CANDIDACY.

A. A candidate may challenge the eligibility of another candidate in writing, specifically naming the candidate and the district and stating the cause of the challenge. Such challenges must be filed no later than two (2) working days after the closing of the filing period for the candidates. A candidate being challenged shall have three (3) working days from the day of receipt of notice of the challenge to file an appeal to the challenge; provided, however, that other time frames for filing of challenges and counter appeals may be stipulated by the Legislature for special elections. Notice of a challenge shall be sent to the challenged candidate by certified mail, return receipt requested or may be delivered in person. If notice of challenge is hand delivered, the person who completes delivery will file a statement which includes the details of delivery, including date, time and location.

B. Any Election Commission member, or Election Secretary/Tribal Registrar, who may possess information about a candidate for office which might disqualify such candidate from running or holding such office shall be authorized to challenge such candidate in the same manner and according to the same form as is required of a candidate's challenge, with the exception of time limitations of challenges. The Election Commission shall have an ongoing ability to challenge the eligibility of a candidate throughout the entire election process.

SECTION 8-206 8-210 HEARING CHALLENGE, DECISION.

A candidate's eligibility dispute shall be heard by the Election Commission no later than seven (7) days after the challenged candidate has been notified of the challenge. The decision of the Election Commission on the eligibility of the candidate shall be final and in writing and shall be made within seven (7) days after the challenged candidate has been notified. The election date shall not be delayed.

SECTION 8-207 8-211 APPEAL.

If the final decision of the Election Commission on the eligibility of a candidate denies him from running for office, the candidate may appeal the decision to the Tribal Court by filing an appeal in writing within seven (7) days after the Election Commission renders its decision. However, no ruling by the Court shall delay the date of any election and the ruling of the Court shall be final.

SECTION 8-301 ELIGIBILITY TO VOTE, APPLICATION FOR REGISTRATION.

A. In order to register to vote, a person must be a citizen of the Chickasaw Nation as prescribed by the Constitution.

B. The Election Secretary/Tribal Registrar shall compare the completed voter registration application with the Nation's citizenship database. A Chickasaw descendant who is registered to vote with another Indian tribe is not eligible to register as a Chickasaw voter unless he terminates his voting rights with that tribe. To become a registered voter, one must have a CDIB on file with the Nation's CDIB office, or possess a CDIB card issued by another agency showing Chickasaw blood or have been issued an official Chickasaw Nation citizenship card as reflected in the Chickasaw Nation citizenship database and must be 18 years of age or older.

C. Registering Voters shall be an ongoing function of the Election Secretary/Tribal Registrar except for closed periods as defined herein. When registering Voters, the Election Secretary/Tribal Registrar shall accurately record all information provided by the applicant, including the applicant's district of residence or, if the applicant does not reside within the Chickasaw Nation, district of choice. Voters shall not be changed from one district to another unless such Voters request the change in writing submitted to the Election Secretary/Tribal Registrar. All changes including new Voters, deceased and undeliverable Voters and change of districts shall be done monthly.

SECTION 8-302 VOTER REGISTRATION.

A Chickasaw citizen may register by contacting the Election Secretary/Tribal Registrar's Office ~~at the headquarters~~. Contact may be in person or by writing to the Election Secretary/Tribal Registrar. The Election Secretary/Tribal Registrar Office shall conduct registration of voters on an ongoing basis, except as otherwise provided in this title. This process shall include periodic publicity and community outreach efforts by the Election Secretary/Tribal Registrar ~~Office~~.

SECTION 8-303 VOTER REGISTRATION CLOSING DATE.

A. Voter registration period remains open throughout the year except as provided in this section.

B. Voter registration shall close fifteen (15) days prior to the normal Mail out date and shall remain closed fifteen (15) days after said date, or the runoff election date, whichever is later. It shall be the responsibility of the Election Secretary/Tribal Registrar to switch districts for voters requesting such changes only during time registration is open.

C. During the open registration period and at such other times as may be deemed necessary by the Election Secretary/Tribal Registrar, the Election Secretary/Tribal Registrar shall cause to be published in the Chickasaw Times newspaper, a list of voters whose ballots have been returned as undeliverable by the United States Postal Service, which shall serve to notify such voters that their voter registration shall be placed in an inactive status. The Election Secretary/Tribal Registrar may include a voter registration form as part of such publication, as an aid to voters who need to correct their residency and mailing address information. Such voters shall not receive any ballots for tribal elections nor shall they be eligible to vote in any tribal elections until such time as the voters inform the Tribal Registration of a correct residency and mailing address; provided, however, that should the Tribal Registration Office be notified by the United States Postal Service of a forwarding order for an address of a voter for whom mail has been returned marked undeliverable by the United States Postal Service, the change reflected in that forwarding order shall be made on the voter's records by the Election Secretary/Tribal Registrar. Any changes for corrections that are submitted by a voter or by the United States Postal Service after the registration period closes shall be held by the Election Secretary/Tribal Registrar until registration re-opens and no ballots shall be mailed to them when they fail to submit their corrected voter information prior to the closing date for voter registration.

SECTION 8-308 FINAL DECISION.

If the final decision of the Election Commission on the eligibility of the voter denies voting privileges, the voter may appeal the decision of the Election Commission to the Tribal Court ~~from the decision of the Election Commission~~ within ten (10) days of the Election Commission's decision. No ruling by the Court shall delay the date of any election. The ruling of the Election Commission shall be valid unless overruled by the Tribal Court.

SECTION 8-419 PERMISSION TO BE PRESENT/LEAVE ROOM.

The Election Secretary/Tribal Registrar, Election Commission members, counters, and watchers are the only authorized parties to be present in the room at counting. No member of the Election Commission, and no counters or watchers, shall leave the ballot counting place without permission from the Election Secretary/Tribal Registrar or Election Commission Chairman. All people present at counting will bring their own meals to avoid the need to leave the area.

SECTION 8-423 NO VOTE COUNTING.

____ Watchers shall not participate in actual vote counting. No watcher shall talk to any counter during the actual vote counting process or disrupt proceedings in any other manner. Watchers shall be warned by the Election Commission for violations of this Section. A second violation of this

Section shall result in the watcher's expulsion. ~~One warning, given by the Election Secretary/Tribal Registrar or any one member of the Chickasaw Election Commission, for such interference or disturbance, shall result in the watcher's expulsion from the proceeding upon commission of a second offense.~~

SECTION 8-424 WATCHER OBJECTION.

If a watcher objects to the manner in which a ballot is counted, he may make a written note of the objection. The watcher shall sign the note and attach it to that ballot. The Election Secretary/Tribal Registrar and at least three (3) ~~of five (5)~~ commissioners shall rule on such ballots at ~~his~~ their earliest convenience.

SECTION 8-425 WATCHER SECRECY.

Watchers shall not divulge any information or give any indication as to the results of the count and shall not leave the counting place without permission from the Election Secretary/Tribal registrar or a member of the Commission ~~Chairman~~ until the election count is complete.

SECTION ~~8-429~~ 8-426 RUNOFF ELECTION.

If no candidate receives more than fifty percent (50%) of the total votes, there will be a runoff election. The two (2) candidates receiving the most votes will qualify for the runoff election. However, should the counting results show a tie for the second highest total between two (2) candidates, a recount shall be conducted for those two (2) candidates. In this case, no fee shall be charged to the candidates for the recount. If there is still a tie between these two (2) candidates after the recount, the Election Commission shall then decide the winner by the toss of a coin. The winner being the candidate who successfully chooses the side landing face up.

SECTION ~~8-430~~ 8-427 RUNOFF ELECTION PROCEDURES.

The runoff election ballots shall be sent to voters on the first Tuesday of September in the year of the election. The ballots must be returned by the third Wednesday in September, no later than 10:30 a.m., and shall be counted on the same day (Wednesday) at the same location and under the same procedures and regulations as those used in the regular election. Results shall be announced on Wednesday after the ballots are counted and shall be certified under regular election rules. The successful runoff candidate must receive more than fifty percent (50%) of the total votes in order to be duly elected. If the canvas of the tally of results of a runoff election reveal that the two (2) runoff candidates have received the same number of votes, the Election Commission shall conduct a recount of all the ballots. No fee for such recount shall be charged to the runoff candidates. Should a tie exist at the completion of the recount, the Election Commission shall decide the winner by the toss of a coin. The winner being the candidate who successfully chooses the side landing facing up.

SECTION ~~8-426~~ 428 RECOUNT PERIOD.

Only a candidate for office may ask for a recount. Once a recount has been requested and established, the date shall be furnished to the candidates, and watchers shall be notified by the Election Secretary/Tribal Registrar.

SECTION 8-429 RECOUNT PROCEDURES.

Recount procedures shall mirror the procedures used for the election being recounted with the same privileges of challenge.

SECTION ~~8-427~~ 8-430 RECOUNT FEE.

A candidate may request a recount of votes which involve his electoral district by delivery of a cashier's check or postal money order for Two Hundred Fifty Dollars (\$250.00) for each legislative district to be recounted. The candidate shall specify in writing the legislative district or districts which are sought to be recounted. The cashier's check or postal money order must be made payable to the Election Commission and delivered in person to the office of the Election Secretary/Tribal Registrar ~~at the headquarters of the Nation~~. This check or copy of it shall be available for public inspection. The recount fee shall not be refunded if a recount is held.

SECTION ~~8-428~~ 8-431 RECOUNT REQUEST TIME LIMIT.

Request for a recount must be filed in person and in writing at the Office of the Election Secretary/Tribal Registrar no later than three (3) working days following the certification of the election returns.

SECTION 8-703 CONDUCT OF RECALL ELECTIONS.

The Legislature may delegate authority to the ~~shall provide oversight of the~~ Election Commission in the conduct of recall elections. These elections shall be conducted in full compliance with the Constitution and all sections of this Title except where relevant dates may need to be revised.

SECTION 8-901 USE OF TRIBAL ASSETS PROHIBITED.

~~Candidates or potential candidates for elective office or persons acting on behalf of such a candidate are strictly prohibited from the use of any tribal assets of any kind for campaign purposes.~~

A. Candidates are responsible for their campaigns and the conduct of their campaign workers. Candidates or potential candidates for elective office and their campaign workers are strictly prohibited from the use of any tribal assets of any kind for campaign purposes.

B. A candidate may file a written complaint regarding another candidate using tribal assets for campaign purposes with the Ethics Commission. The complaint must specify the

candidate and the district and stating the cause of the complaint. Such complaints may be filed up to the date of counting of the ballots in such election. The complainant shall be responsible for sending a copy of the complaint to the candidate who is the subject of the complaint. The copy of the complaint shall be sent to the challenged candidate by certified mail, return receipt requested.

C. The candidate who is the subject of the complaint shall have five (5) working days from the day of receipt of notice of the complaint to file a response to the complaint; provided, however, that other time frames for filing of complaints and responses may be stipulated by the Legislature for special elections. The Ethics Commission may, upon the hearing of testimony or other reliable evidence, recognize a defense of ignorance on the part of the candidate to the actions of his campaign workers, or misfeasance or malfeasance of campaign workers.

D. The Election Secretary/Tribal Registrar and/or Election Commission members who possess information about a candidate using tribal assets in violation of this Section shall be required to file a complaint in the same manner and according to the same form as is required of a candidate's complaint, with the exception of time limitations. The failure of the Election Secretary/Tribal Registrar or any Commission member possessing such information to file a complaint may be cause for his removal from office. The Election Commission shall have an ongoing ability to challenge the eligibility of a candidate throughout the entire election process.

SECTION 8-902

PENALTIES FOR IMPROPER USE OF TRIBAL ASSETS; ENFORCEMENT.

A. If, upon the conclusion of a duly conducted hearing, it is determined by a majority of the Ethics Commission that tribal assets have been used for campaign purposes, the following penalties may be imposed:

1. Upon a first violation, a private reprimand shall be issued to the candidate in writing. Depending upon the severity of the violation, a public reprimand in writing may be issued to the candidate and may also be sent to newspapers of general circulation in the Chickasaw Nation, including the tribal newspaper, for immediate publication.

2. Upon second and subsequent violations, in addition to the penalties described above, the candidate may be fined up to five hundred dollars (\$500) per violation.

3. Failure to pay a fine assessed by the Ethics Commission may result in a winning candidate not being seated as an elected official until said fines are paid. In such event, the winning candidate shall be titled "Legislator-elect" and the Legislature will not be considered to have a vacancy.

B. Penalties imposed by the Ethics Commission shall be enforced by the Executive Department.

SECTION 8-1001

DISCLOSURE OF CAMPAIGN CONTRIBUTIONS.

A. All candidates for elective office shall file a statement disclosing any and all campaign contributions, including the following information:

1. The source and amount of all monetary contributions made to either the candidate, a campaign worker or the campaign ~~their campaign~~.

2. The source and value or cost of any ~~“in kind”~~ In Kind contributions. ~~“In kind”~~ is defined as any thing or service donated of any value.

SECTION 8-1003 DUTY TO REPORT.

Campaign Contribution Disclosure Statements ~~will~~ shall be filed with the Election Secretary/Tribal Registrar upon declaration of candidacy and updates ~~will~~ shall be filed at the end of every month until the election(s) for said candidate is completed. It shall be filed on a form provided by the Election Commission which will reflect the above information and be made available for public inspection and copying if requested during regular business hours.

SECTION 8-1004 PENALTIES FAILURE TO FILE REPORTS; INACCURATE REPORTS.

~~Failure to file reports within five days after the end of the month or willfully filing inaccurate reports can be grounds for disqualification by and at the discretion of the Election Commission.~~

A. If any candidate should fail to file a campaign contribution report within five (5) days after the end of the month, the Election Secretary/Tribal Registrar shall file a complaint with the Ethics Commission.

B. If the Election Secretary/Tribal Registrar, an Election Commission member or a candidate has reason to believe that a candidate has willfully filed an inaccurate report, they shall file a complaint with the Ethics Commission.

C. A complaint must specify the candidate and the district and state the cause of the complaint. The complaint shall send a copy of the complaint to the candidate who is the subject of the complaint by certified mail, return receipt requested.

D. The candidate who is the subject of the complaint shall have five (5) working days from the day of receipt of notice of the complaint to file a response.

E. Complaints regarding campaign contribution reporting shall be heard in accordance with Title 2, Chapter 7, Article A, Section 2-701.4 of the Chickasaw Nation Code.

SECTION 8-1005 (RESERVED). CHALLENGES TO CANDIDACY.

~~A. A candidate may challenge the eligibility of another candidate in writing, specifically~~

~~naming the candidate and the district and stating the cause of the challenge as based upon a campaign contribution disclosure violation. Such challenges must be filed no later than two (2) working days after the closing of the filing deadline for the disclosure statements for that particular month. A candidate being challenged shall have three (3) working days from the day of receipt of notice of the challenge to file an appeal to the challenge; provided, however, that other time frames for filing of challenges and counter appeals may be stipulated by the Legislature for special elections. Notice of a challenge shall be sent to the challenged candidate by certified mail, return receipt requested or may be delivered in person. If notice of challenge is hand delivered, the person who completes delivery will file a statement which includes the details of delivery, including date, time and location.~~

~~——— B. ——— Any Election Commission member, or Election Secretary/Tribal Registrar, who may possess information about a candidate for office which might disqualify such candidate from running or holding such office shall be authorized to challenge such candidate in the same manner and according to the same form as is required of a candidate's challenge.~~

**SECTION 8-1006 ~~HEARING CHALLENGE, DECISION~~ PENALTIES FOR
FAILURE TO FILE REPORTS; INACCURATE REPORTS;
ENFORCEMENT.**

~~A candidate's campaign contribution disclosure dispute shall be heard by the Election Commission no later than seven (7) days after the challenged candidate has been notified of the challenge. The decision of the Election Commission on the eligibility of the candidate shall be final and in writing and shall be made within seven (7) days after the challenged candidate has been notified. The election date shall not be delayed.~~

A. If, upon the conclusion of a duly conducted hearing, it is determined by a majority of the Ethics Commission that a candidate failed to file campaign contribution reports in a timely manner or willfully filed inaccurate reports, the following penalties may be imposed:

1. Upon a first violation, a private reprimand shall be issued to the candidate in writing. Depending upon the severity of the violation, a public reprimand in writing may be issued to the candidate and may also be sent to newspapers of general circulation in the Chickasaw Nation, including the tribal newspaper, for immediate publication.

2. Upon second and subsequent violations, in addition to the penalties described above, the candidate may be fined up to five hundred dollars (\$500) per violation.

3. Failure to pay a fine assessed by the Ethics Commission may result in a winning candidate not being seated as an elected official until said fines are paid. In such event, the winning candidate shall be titled "Legislator-elect" and the Legislature will not be considered to have a vacancy.

B. Penalties imposed by the Ethics Commission shall be enforced by the Executive

Department.

SECTION 8-1007 APPEALS.

~~If the final decision of the Election Commission on the eligibility of a candidate denies him from running for office, the candidate may appeal the decision to the Tribal Court by filing an appeal in writing within seven (7) days after the Election Commission renders its decision. However, no ruling by the Court shall delay the date of any election and the ruling of the Court shall be final.~~

Appeals from decisions of the Ethics Commission shall be made in accordance with Title 2, Chapter 7, Article A, Section 2-701.6 of the Chickasaw Nation Code.

SECTION 2-1041 ELECTION COMMISSION ESTABLISHED, MEMBERS.

The Election Commission shall be composed of five (5) tribal members appointed by the Governor with the advice and consent of the Legislature. All must be residents of the Chickasaw Nation. There shall be one member from each of the four voting districts of the Nation and one member may be selected at large from any of the four districts. The Election Commission shall be authorized to act in a prescribed manner and to perform prescribed acts as set forth in this code. ~~It shall be an independent commission in the performance of its statutory duties and authority and in the performance of such shall not be subject to direction or supervision by the Executive Office or the Chickasaw Nation Tribal Legislature.~~ The Commission shall be within the Executive Department; however, the Commission shall make its decisions in the performance of its statutory duties and authority without input, advice or interference from any of the three departments of tribal government, any officer or employee thereof, or any other person not sitting on the Commission.

SECTION 2-1043 TERM OF OFFICE.

~~After their initial appointment, the members of the Election Commission shall meet and draw lots for terms to establish a system of staggered terms in office. One member shall initially serve a one-year term, one member shall initially serve a two-year term, and one member shall initially serve a three-year term. Thereafter, m~~ Members of the commission shall hold three-year terms. In the event of an expansion of the number of Election Commission seats, the existing Election Commission members will stagger the terms of the newly created seats using the most fair and equitable method in keeping with the language and intent of this provision. A term year will be deemed to run from January 1 - December 31. Commissioners shall be reappointed, or a replacement shall be appointed, at least sixty (60) days prior to the expiration of the term. Replacements for death or resignation must be done on an as needed basis and in a timely manner.

SECTION 2-1044 DUTIES OF COMMISSION.

The Election Commission shall conduct all elections of the Nation. In keeping with such duties, they shall have the following rights and responsibilities:

1. Upon a candidate filing, the Commission shall make a determination of the eligibility of said candidate pursuant to the Constitution and the Code. The eligibility determination shall be made within five (5) days of the close of the candidate filing period. The basis for this decision shall include:

- a. a verifiable determination that the candidate lives within the boundaries of the Chickasaw Nation;
- b. a criminal background check;
- c. a completed application for candidacy; and
- d. any such other requirements under the code or constitution.

2. If needed, hire independent legal counsel for consultation. Counsel shall be someone who is not used by the tribe in any other capacity. The Commission may also use any available technology and/or any necessary consulting services in order to perform their duties in the most efficient and just method possible.

3. Oversee the registration of voters and maintain current voter lists.

4. Assist the Legislature in developing rules and regulations necessary to conduct Chickasaw Nation elections.

5. Conduct all election recounts pursuant to applicable law.

6. Prepare and order the official ballot or ballots.

7. Be responsible for ensuring a mechanism for the storage of and safekeeping of all election ballots and all documents after the close of the election pursuant to procedures established by the Election Commission.

8. Engage in any other activities for the performance of its responsibilities as required by the provisions of this Code.

9. ~~Provide for~~ Attend orientation and training developed by the Legislature for ~~of~~ existing and new members.

10. Maintain good working knowledge of current election rules and regulations.

~~10-11.~~ Take any and all steps to insure that all candidates are treated fairly with regard to the election processes and access to accurate voters lists ~~and information.~~

~~11-12.~~ Hold hearings and issue written rulings on challenges to candidacy and voting privileges, ~~whether regarding campaign contribution disclosure issues or on other~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 19, 2002, by a vote of 11 ayes, 1 nays, 0 abstentions.

Wanda Scott
Chairperson
Chickasaw Tribal Legislature

Dean McManus
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 23 2002

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-017 Amendments to Title 8 and Title 2, Chapter 10, Article D of the Chickasaw Nation Code (Elections and Campaigns & Chickasaw Election Commission)

Explanation: This resolution approves of Amendments to Title 8 and Title 2, Chapter 10, Article D of the Chickasaw Nation Code. Amendments to Title 8 will promote clarity in tribal election laws and procedures and establish a more uniform system of conducting elections, both primary and runoff, including recounts. Amendments to Title 2, Chapter 10, Article D will clarify the duties and responsibilities of the Chickasaw Nation Election Commission and Election Secretary/Tribal Registrar.

Requested By: Mooniene Ogee, Chairperson
Election Rules & Regulations Ad Hoc Committee

Presented By: Mooniene Ogee, Chairman
Election Rules & Regulations Ad Hoc Committee